Case No.: 24CV434569

This is a lemon law action regarding the purchase of a used 2021 Jeep Cherokee. Defendant FCA US, LLC's ("FCA") motion for judgment on the pleadings as to the first cause of action for violation of Civil Code section 1793.1, subdivision (a)(2), the second cause of action for violation of Civil Code section 1793.1, subdivision (a)(3), the third cause of action for violation of Civil Code section 1793.2 and the fourth cause of action for violation of Civil Code sections 1791.1, 1794 and 1795.5 is GRANTED without leave to amend. (See *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 200-202 (stating that FCA is a vehicle manufacturer and that "the basic framework of the Song-Beverly Act distinguishes between new and used products and 'provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally off the hook'… '[s]ection 1795.5 provides express warranty protections for used goods only where the entity selling the used product *issues an express warranty at the time of sale'*… the obligation to maintain adequate repair facilities lies with 'the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new)… under § 1795.5, 'only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods'").)

As to the fifth cause of action, FCA fails to make any argument. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party "fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived"); see also *Arega v. Bay Area Rapid Transit Dist*. (2022) 83 Cal. App. 5th 308, 318 (stating same); see also *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 (stating that courts "are not bound to develop [the parties'] arguments for them").) Accordingly, FCA's motion for judgment on the pleadings as to the fifth cause of action for fraudulent inducement—concealment is DENIED.

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Case Name: *Yee, et al. v. FCA US , LLC, et al.*

Case No.: 25CV461522

FCA's demurrer to the first through fourth causes of action on the ground that they are barred by the statute of repose pursuant to Code of Civil Procedure sections 871.20 and 871.21 is OVERRULED. As to the third and fourth causes of action, section 871.20 plainly states that it applies to a violation of section 1793.2 (b) or (d); it does not state that it applies to a violation of sections 1793.2, subdivision (a)(3) or 1791. As to the first and second causes of action, in order for GM to rely on sections 871.20 or 871.21, it needs to have "elect[ed] to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles." (Code Civ. Proc. §§ 871.29, subd. (b).) While FCA argues that it is "a manufacturer that has opted into the statute," there is no such allegation in the FAC, and FCA neither demonstrates that it made any such election, nor requests judicial notice of any election, thereby failing to establish that either section 870.20 or 871.21 applies to the FAC. (See *Richtek USA, Inc. v. uPI Semiconductor Corp*. (2015) 242 Cal.App.4th 651, 658 (Sixth District stating that "[w]here, as here, [plaintiffs] demur on the primary ground that the action is time-barred under the affirmative defense of the statute of limitations… the defect must clearly and affirmatively appear on the face of the complaint"); see also *Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400 (Sixth District stating that "to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint").)

Citing to *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, FCA argues that the sixth cause of action of the FAC "simply asserts conclusory allegations that FCA US concealed acts without naming individuals, providing details about representations or specifying dates." However, while FCA is correct that, as general rule, each element in fraud